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Case Number: 25NNCV01149 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further Response to Requests

for Production, Special Interrogatories, and Form Interrogatories; Request for Sanctions

Hearing Date: 8/14/26

CASE NO.: 25NNCV01149

CASE NAME: Temurian v. Temuryan, et al.

Moving Party: Defendant Margaret Anna [Ann]
Temuryan

Responding Party: Plaintiff Armen Armond
Temurian

Notice: Sufficient

Ruling: GRANT in part.

BACKGROUND

This is a real property dispute between family members. On February 20, 2025, plaintiff Armen Armond Temurian (Plaintiff), in pro per, filed the operative Complaint against defendants Margaret Anna [Ann] Temuryan (Defendant) and Vahe Garnik Temuryan. On July 2,

2026, Defendant filed an Amended Cross-Complaint against Plaintiff.

Defendant moves for an order compelling further response to request for production of documents (RPD) (Res ID: _2405), special interrogatories (Res ID: _5102), and form interrogatories (Res ID: _3283) from Plaintiff.

Defendant filed the instant motions on May 12, 2026. On August 5, 2026, Plaintiff filed an opposition to the motions.

LEGAL STANDARD

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing,” the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further Production of Documents

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

“A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration” and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes

great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

Compel Further Responses to Interrogatories

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that... (1) [a]n answer to a particular interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or... (3) [a]n objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300(a).)

“A motion under subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2030.300(b).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

DISCUSSION

Timeliness

Here, verified responses to request for production were provided by Plaintiff on May 1, 2026. (RPD Separate Statement (SS), Exh. B.) The instant motions were filed on May 12, 2026, 11 days after the issuance of responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Defendant’s counsel declares that initial verified responses to special and form interrogatories were provided by Plaintiff on March 23, 2026, and supplemental

responses provided on April 1, 2026. (Butland Decl., ¶ 2.) The instant motions were filed on May 12, 2026, 41 days from issuance of supplemental responses. Thus, the motion is timely and conforms with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Defendant filed separate statements in compliance with rule 3.1345(a) for each of the instant motions. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a “meet and confer” declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Defendant declares that they have attempted to engage in meet and confer efforts but have not received a response from Plaintiff (Butland Decl., ¶ 3.) However, Plaintiff declares that the parties have engaged in meet and confer efforts. (Temurian Decl., ¶ 3.)

Neither party

confirms whether meet and confer efforts were conducted in good faith if at all. However, the Court will address the motions on its merits.

Compel Further Production of Documents

Defendant

moves the Court to compel Defendant to produce further responses to RPD items 1-8 arguing that Defendant’s responses are incomplete. (Mot. to Compel RPD, p. 2.) RPD #1 requests all documents referencing payments made on the home at issue and RPDs #2-7 request a letter or several letters between Houry Tartarian and defendant Vahe Temuryan. RPD #8 requests all documents supporting the

breach of contract action.

Plaintiff responded

to RPDs #1-2, and 8 with objections but stated they would produce non-privileged responsive documents after reasonable diligent inquiry. (RPD Separate Statement (SS), pp. 1-2, 5.) Defendant argues that any objections have been waived by late response and that Plaintiff's response constitutes a non-response because they have yet to produce the documents. (Ibid.) Defendant requests that Plaintiff produce responsive documents in their possession. (Ibid.)

Plaintiff

responded to RPD #3 with objections and stated that the letter Defendant is requesting doesn't exist, and a very private letter which does exist was returned to the sender. (RPD SS, p. 2.) Defendant argues objection was waived by late response and that this is nonetheless not a proper response. (Ibid.)

Plaintiff

responded to RPDs #4-7 with objections but stated that there are no responsive documents existing within his possession, custody, or control. (RPD SS, pp. 3-4.) Defendant argues that any objections were waived by late response and Plaintiff is in possession of these documents. (Ibid.) Items 4-7 is a letter or collection of letters dated June 2014, which Defendant argues are the basis of Plaintiff's lawsuit. (Ibid.) Defendant argues that Plaintiff lives with the writer of the letters and certainly has access to them. (Ibid.)

Plaintiff argues

that he answered truthfully and cannot be compelled to produce information or documents from third parties outside his possession, custody, or control. (Opp., pp. 2-3.) Plaintiff declares that he conducted reasonable and diligent inquiry to locate responsive documents available and has provided those responsive, non-privileged documents. (Temurian Decl., ¶¶ 4, 6.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) Here, the RPDs were served on Plaintiff on November 24, 2025 (RPD SS, Exh. A.) However responses were not provided until March 23, 2026. (RPD SS, Exh. B.) This is beyond the 30-day statutory deadline, and any objections are waived pursuant to Code Civil Procedure section 2031.290.

Here, all

documents requested are relevant to this case as they correlate to the property dispute action, and Defendant has demonstrated good cause for compelling further production.

Accordingly, the motion to compel further is GRANTED as to RPDs.

Compel
Further Response to Interrogatories

Defendant moves the Court to compel Plaintiff to provide further response to special interrogatories #2, 6-7, 9, 15-16, 18, and 21-22. (Mot. to Compel Special Interrog., p. 2.) Defendant also moves the Court to compel Plaintiff to provide further response to form interrogatory #17. (Mot. to Compel Form Interrog., p. 4.)

Special interrogatories #2, 6-7, 9, 15-16, 18, and 21-22 all inquire about the ownership of the home in dispute and the same letter requested in the RPDs. Plaintiff responds to the special interrogatories by stating “no further responsive information will be provided”, “responding party is not required to obtain information from third parties” or “responding party is not presently aware of additional responsive non-privileged information”. (Special Interrog., SS, pp. 1-12.) Defendant argues that these answers are non-responsive, incomplete and evasive. (Id. at pp. 2, 4-6.)

Form interrogatory #17 asks Plaintiff to identify all facts on which Plaintiff based any admission or denial in the request for admission. (Form Interrog., SS, p. 1.) Plaintiff responds to form interrogatory #17 by stating “Responding Party states that the facts, persons and documents supporting the responses include those presently known to Responding Party and will be supplemented as discovery continues” at refuses to restate all facts known. (Id. at p. 2.) Defendant argues that Plaintiff’s response is incomplete because he did not list all facts on which he bases his denials. (Form Interrog., SS, p. 3.)

Plaintiff argues that he answered each interrogatory based upon his personal knowledge and information available to him. (Opp., p. 2.) Further Plaintiff argues that he cannot truthfully testify to things beyond his own knowledge or be forced to speculate. (Opp., pp. 2-3.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) Here, the interrogatories were served on Plaintiff on November 24, 2025 (Butland Decl., ¶ 2.) However, responses were not provided until March 23, 2026. (Ibid.) This is beyond the 30-day statutory deadline, and any objections are waived pursuant to Code Civil Procedure section 2030.290.

Here, the special interrogatories inquire into documents which are relevant to this case as they correlate to the property dispute action, and Defendant has demonstrated good cause for compelling further response to these interrogatories. However, form interrogatory #17 asks Plaintiff to recite all facts on which Plaintiff bases his responses to requests for admission. This task seems burdensome and Defendant has not demonstrated good cause for compelling further response to this interrogatory.

Accordingly, the motion to compel further is GRANTED as to the special interrogatories. The motion to compel further is DENIED as to the form interrogatory.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant

request imposition of sanctions in the amount of \$1,660 for special interrogatories \$1,260 for form interrogatories against Plaintiff. (Mot. to Compel Special Interrog., Butland Decl., ¶ 2; Mot. to Compel Form Interrog., Butland Decl., ¶ 2.)

Defendant's requests \$1,600 in attorney's fees reflecting 4 hours preparing the instant motion, a reply, and appearing at the hearing at a rate of \$400 per hour, plus a \$60 filing fee. (Mot. to Compel Special Interrog., Butland Decl., ¶ 2.)

Here, the Court will reduce the fee to \$800 in attorney's fees reflecting 1 hour preparing the instant motion and 1 hour for attending the hearing, plus \$60 for the filing fee, for a total of \$860. Since the motion to compel further response to the form interrogatory is denied, sanctions will not be awarded in that category.

CONCLUSION AND ORDER

Defendant's' Motion to Compel Further Response to Requests for Production is GRANTED.

Defendant's' Motion to Compel Further Response to Special Interrogatories is GRANTED.

Defendant's' Motion to Compel Further Response to Form Interrogatories is DENIED.

Defendant's request for sanctions is awarded in the amount of \$860, to be paid by Plaintiff within 15 days from this ruling to Defendant.

MOVING PARTY shall provide notice and provide a proposed order consistent with this ruling within 5 days from this date.

Motion to Compel Further Response to Requests for Production and Special Interrogatories; Request for Sanctions

Hearing Date: 8/14/26

CASE NO.: 25NNCV01149

CASE NAME: Temurian v. Temuryan, et al.

Moving Party: Plaintiff Armen Armond Temurian

Responding Party: Defendant Margaret Anna
[Ann] Temuryan

Notice: Sufficient

Ruling: DENY

BACKGROUND

This is a real property dispute between family members. On February 20, 2025, plaintiff Armen Armond Temurian (Plaintiff), in pro per, filed the operative Complaint against defendants Margaret Anna [Ann] Temuryan (Defendant) and Vahe Garnik Temuryan. On July 2, 2026, Defendant filed an Amended Cross-Complaint against Plaintiff.

Plaintiff moves for an order compelling further response to request for production of documents (RPD) and special interrogatories (Res ID: _1900) from Defendant.

Plaintiff filed the instant motion on April 21, 2026. On August 4, 2026, Defendant filed an opposition to the motions. Defendant filed a reply on August 11, 2026.

LEGAL

STANDARD

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing,” the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see Vidal Sassoon v.

Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

DISCUSSION

Timeliness

Here, verified responses to requests for production and special interrogatories were provided by Defendant on December 17, 2025. (Temurian Decl., Exh. D; Exh. F) The instant motion was filed on April 21, 2026, 125 days from issuance of responses. Thus, the motion is not timely and goes far beyond the 45-day statutory deadline

Although

Plaintiff states that the motion is timely and purports that he first received the responses in April 2026, the proof of service reflects service being completed at Plaintiff's address of record. (Temurian Decl., ¶¶ 4-5; Exh. D; Exh. F.) In opposition, Defendant argues that the motions are extremely untimely as responses were served at Plaintiff's address and by email on December 17, 2025. (Opp., p. 2; Butland Decl., Exh. B.) Further, Defendant argues that a subsequent demurrer and amendment changed the causes of action at play. (Opp., p. 3; Butland Decl., Exh. C.)

Here,

the motion is untimely and filed far beyond the 45-day mandatory deadline laid out for a motion to compel further. (Vidal Sassoon, *supra*, 147 Cal.App.3d at 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Accordingly,

the motion to compel further is DENIED.

CONCLUSION

AND ORDER

Defendant's' Motion to Compel Further

Response to Requests for Production and Special Interrogatories is DENIED.

Plaintiff's request for sanctions is
DENIED.

MOVING PARTY shall provide notice and
provide a proposed order consistent with this ruling within 5 days from this
date.